

Copyright of AI-generated works: Approaches in the EU and beyond



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Summary

The rise of generative AI has presented a global challenge to copyright law regarding authorship and human creativity. This has implications for the ability of creators to control and monetise their work, in addition to incentives to use innovative technologies.

Currently, the EU lacks specific rules on the copyrightability of AI-generated works, but existing case law of the Court of Justice of the European Union and developments at Member State level demonstrate a strong need for human creativity. The European Parliament has also advocated a human-centric approach while calling for further analysis of how intellectual property rights are applied to content created with the use of AI tools.

Most countries, including the United States, maintain a human-centric approach, limiting copyright to works with significant human involvement in the creative process. However, not all the international approaches and practices are aligned, and this briefing gives examples from a selection of different jurisdictions. Certain common-law countries, including the United Kingdom, grant copyright to 'computer-generated' works without a human author while, in a slightly contradictory manner, assigning authorship to the person responsible for the arrangements for the creation of the work. Chinese courts show mixed rulings, sometimes granting copyright based on sufficient human effort in selecting and editing prompts. Cases like the artwork called 'Suryast', produced with the help of AI, reveal conflicting copyright decisions across the world, with AI being recognised as a co-author in some countries. Uniquely, Ukraine has adopted a 'sui generis' right to provide alternative protection for AI-generated images, distinct from traditional copyright.

As a result, there may be a need for greater coordination globally to reduce legal uncertainty and to determine the level of human involvement needed for copyright protection.

In this briefing

- The use of generative AI in creative works
- The approach in the EU
- Approaches beyond the EU
- Outlook



The use of generative AI in creative works

Generative artificial intelligence (AI) refers to technology that can learn from and mimic large amounts of data to generate new content such as text, images, music and videos, based on user inputs. Copyright protection of the resulting output data, comprising scientific, artistic and literary works, bears relevance particularly to commercial opportunities for artists, designers, engineers and marketers. With the help of copyright, creators gain control of the use of their works and can seek payment for it.

On the one hand, [writers](#), [musicians](#) and [audiovisual](#) authors have typically argued against full copyright recognition of purely AI-generated works without human involvement and authorship. This could entail devaluing their creative livelihoods and enforcing the dominance of tech companies. On the other hand, it could be desirable for artists to be able to claim copyright of their works that have been polished or prepared with the assistance of AI tools, which are becoming more widely used. In fact, the use of generative AI in creative works has the potential to support artistic productivity and technological innovation. However, it can be difficult to determine the extent of AI use that is possible from the copyright perspective.

The approach in the EU

At the moment, there are no specific Union-wide rules regarding the copyright of AI outputs. More specifically, there are no rules on whether AI tools could become authors of copyright-protected works, nor on the acceptable degree of AI use by human authors. The [Artificial Intelligence Act](#) is silent on this matter and only requires providers of general-purpose AI models to put in place a policy to comply with Union law on copyright and related rights. The EU [copyright framework itself](#), like copyright rules in many national jurisdictions, was adopted prior to the surge in AI use over the last few years. However, the general EU copyright doctrine appears to root the notion of authorship in human creativity.

In support of the human-centric approach, there are existing directives which explicitly address copyright authorship with regard to [computer programs](#) and [databases](#). They assign authorship to the person who created the respective computer program or database. In addition, although not dealing expressly with AI outputs, [case law](#) of the Court of Justice of the European Union (CJEU) requires that copyright-protected works must be original in the sense that they reflect the 'author's own intellectual creation' resulting from free and creative choices. The approach has been reaffirmed in several judgments of the CJEU since 2009, with the Court further requiring '[personal touch](#)' and the subject matter of the work to reflect '[the personality of its author](#)'. It has been [argued](#), first of all, that anchoring copyright in human creativity safeguards the moral and cultural values deeply rooted in European legal traditions. Secondly, 'free and creative choices' have been seen as a result of [consciousness](#). In this light, it seems unlikely that purely AI-generated outputs with no or very little human intervention could lead to copyright protection, let alone AI tools themselves possessing copyright over any works. However, the application of the 'intellectual creation' (also known as the 'originality') requirement to works prepared by human creative professionals with the assistance of AI tools remains more open to interpretation. There is legal uncertainty regarding the degree and nature of human creative involvement needed in the final expression.

Perspectives of Member States and the European Parliament

According to the 2024 policy [questionnaire](#) by the Hungarian Presidency of the Council of the EU, Member States share a general view that 'significant' human input would be needed in the creative process for AI-generated works to be protected by copyright. In a recent development, a new [law](#) entered into force in Italy in October 2025, explicitly clarifying that copyright applies to works of human ingenuity created with the aid of AI tools, provided that they are the result of the author's intellectual work. In 2023, probably the first court [ruling](#) dealing with AI outputs was delivered in the EU by a municipal court in Czechia. The municipal court considered that simply writing a prompt generating an image cannot generally amount to authorship under copyright law. The image in question would need to be the unique [result](#) of a creative activity by a natural person.

The European Parliament has also advocated a human-centric approach. In resolutions from [2020](#) and [2021](#), Parliament emphasised the principle of originality linked to natural persons, pointed out the difference between 'AI-assisted' human creations as opposed to purely AI-generated creations, and called for further analysis of the application of intellectual property rights to content created with the use of AI tools. In June 2025, a draft [own-initiative report](#) (rapporteur: Axel Voss, EPP, Germany) was published, and is expected to be voted in plenary in early 2026. The draft 'insists that AI-generated content should remain ineligible for copyright protection' while highlighting the risk of 'inconsistent international regulation' in this field. A recently published [study](#) requested by the European Parliament's Legal Affairs Committee examines the legal status of AI-generated content more closely. It recommends that the EU provide criteria for assessing human authorship in AI-assisted creations and closely monitor international divergence in AI authorship standards.

Approaches beyond the EU

The necessary role of human creativity in copyright protection has been recognised in many other jurisdictions outside the EU, but has been challenged somewhat in others. The sections below give an overview of approaches regarding copyright of AI-generated works in a selection of third countries. It is important to note that the field is dynamic and subject to further developments in the future.

A strong human-centred approach in the United States

The United States has traditionally stood as a strong proponent of the human-centred approach. As far back as 1989, the [US Supreme Court](#) made it clear that 'the author [of a copyrighted work] is ... *the person* who translates an idea into a fixed, tangible expression entitled to copyright protection' [emphasis added]. The application of the principle to AI-generated works was confirmed by a [federal appeals court](#) in March 2025. In addition, the US Copyright Office provided [policy guidance](#) in 2023 on the registration of works incorporating AI-generated material. In their 2025 [report](#) on copyrightability, the Office concludes that, 'given current generally available technology, prompts alone do not provide sufficient human control to make users of an AI system the authors of the output'. However, the Office states that copyright may protect human-authored aspects of the work in cases involving selecting or arranging the AI-generated material in a 'sufficiently creative way'; the exact way this can be accomplished is still to be further defined. As preliminary evidence of the possibility, the US Copyright Office had a [case](#) in 2023 involving a graphic novel called 'Zarya of the Dawn'. The Office refused copyright for the AI-generated individual images used in the novel but granted copyright for the human-authored text and the arrangement of the images.

Copyright of 'computer-generated works' in certain common-law countries

A slightly different legislative approach can be observed in the [United Kingdom](#), [New Zealand](#), and [Hong Kong](#) (and also in [Ireland](#)), which have copyright rules explicitly recognising 'computer-generated' works where 'there is no human author'. This seems to indicate a more generous approach to AI tools than in the EU and the US. However, the above-mentioned common law jurisdictions subsequently assign authorship to 'the person by whom the arrangements necessary for the creation of the work are undertaken'. These laws date back to 1988, 1994 and 1997, respectively (2000 for Ireland). It is not [clear](#) how the rules would apply in scenarios where a computer creates a work with minimal or indirect human involvement, and the practical application of the rules to AI-generated content has not yet been tested in courts. [Some](#) have claimed that the status of the law in Ireland does not go well with the general approach of EU copyright. In the UK, the Intellectual Property Office is currently reviewing their existing rules and the possible [legal contradiction](#) in the definitions. It ran a public consultation at the beginning of 2025 and, at the time of writing this briefing, the analysis of the results is ongoing.

Judicial activity in China

The approach in [China](#) is to link copyright authorship to works of Chinese citizens or works created under the supervision and responsibility of a legal entity. Chinese courts have been among the world's earliest to interpret the rules in light of AI outputs, but their decisions regarding the level of human involvement needed in the creation of the work have varied.

On the one hand, a notable [decision](#) by the Beijing Internet Court in 2023 recognised copyright protection for an AI-generated image. The [court](#) found that the plaintiff's selection from over 150 prompts and subsequent editing constituted sufficient intellectual achievements reflecting personalised human expression. Another local court, the Changshu People's Court, followed a [similar](#) approach in March 2025 in recognising the copyright of AI-generated images. On the other hand, a [decision](#) by Zhangjiagang Court set the threshold higher for demonstrating human authorship and control. The court held that neither the pictures nor the prompts in question were copyrightable, as they lacked sufficiently original authorship. The [case](#) emphasised the necessity of a verifiable creative process demonstrating the adjustment, selection, and embellishment of the original images by adding prompts and changing parameters, coupled with deliberate, individualised choices and substantial intellectual input over the visual expression elements.

The case of 'Suryast' in India, Canada and the United States

In India, while there is legislation referring to 'computer-generated works' like in the UK and Ireland, there is no reference to a lack of human authors in this context. [Legislation](#) exists to grant copyright authorship to the 'person who causes the [computer-generated work] to be created', demonstrating a human-centric approach. However, in 2020 the [Indian Copyright Office](#) recognised an AI tool as the co-author of a copyright-protected work called 'Suryast'. It concerns a digital photo blended with Vincent Van Gogh's famous 'The Starry Night' painting. The Indian Copyright Office subsequently issued a [withdrawal notice](#) on the grounds of the legal status of the AI tool, but it appears that the work is [still](#) listed in the country's official copyright registry.

Interestingly, the same piece of work was granted [copyright](#), with the AI tool as the co-author, by the Canadian Intellectual Property Office in 2021, evoking more controversy. The status of AI-generated works is [currently](#) uncertain in Canada and the registration process is automated, meaning that the Canadian Intellectual Property Office does not carry out any individual assessments. At the moment,

an application before Canada's Federal Court challenging the designation of an AI system as a co-author in the aforementioned case is [pending](#). As part of the same saga, the US Copyright Office, as confirmed by the [Copyright Review Board](#) in 2023, has denied copyright registration of this particular work with the conclusion that it lacks sufficient human creativity.

The 'Suryast' artwork is a useful test of applying different copyright frameworks to the same piece of content produced with the help of AI. It demonstrates divergent approaches or possibly the need to update current copyright registration systems.

'Sui generis' rights in Ukraine

To avoid black-and-white distinctions between AI-generated works that are protected by copyright and those that are not, [some](#) experts argue that it may be necessary to find a middle way. To this end, in [Ukraine](#), [legislation](#) provides alternative protection, a *sui generis* right, to AI-generated images while traditional copyright still applies to parts that are created by humans. According to the legislation, the special *sui generis* right is vested in the authors of the computer program, their heirs, persons to whom the authors or their heirs transferred economic rights to the computer program, or the lawful users of the computer program. The [wording](#) provides an opportunity to cover all possible technologies, including AI.

It is worth noting that such rights have so far been rejected by the majority of [Member States](#). The 2025 [study](#) requested by the European Parliament's Legal Affairs Committee also rejects the idea, arguing that it could alter competitive dynamics in the cultural and creative sectors. There is concern that expanding intellectual property rights to non-human outputs could give more market power to automated systems and affect the visibility and value of human-authored works, undermining their economic viability. The study proposes to rely on the current legal copyright framework instead. A 2020 European Commission [study](#), published before the more recent AI boom and its general adoption by users, noted that there was no evidence of an industry need for IP protection beyond existing copyright.

Outlook

In addition to concerns expressed by the European Parliament, the World Intellectual Property Office ([WIPO](#)) warns about legal uncertainty introduced by varying interpretations of copyright for AI-generated works. There can be complications, for example, regarding copyright enforcement and cross-border licensing. It is therefore important to monitor developments and foster coordinated approaches in this field. This applies not only to legislation but also to case-law and guidance from public authorities and copyright offices for assessing human authorship in AI-assisted creations.

At the moment, most jurisdictions appear hesitant to assign authorship to AI tools. In line with this approach, major AI tools such as [Gemini](#) and [ChatGPT](#) currently denounce any ownership of content generated via their services in their terms of use. Equally, most jurisdictions require considerable human involvement as a precondition for copyright to be granted to AI-generated works. However, positions may change in the future, particularly in view of the [concerns](#) about global competition in the AI space. It may also be increasingly challenging for enforcers of copyright rules to detect the level of AI use. This technical difficulty may lead to 'copyfraud', referring to concealed [uses](#) of AI when seeking and enforcing copyright protection unless there is more transparency and documentation of the different steps of the creative process. This may eventually lead to a [need](#) to reconsider the legal

presumption of authorship enshrined in the [Directive](#) on Enforcement of Intellectual Property Rights or possibly introducing new [marking requirements](#).

The '[Apply AI Strategy](#)' published by the European Commission in October 2025 highlights the EU's commitment to promoting human-centric AI use and supporting the uptake of AI in the cultural and creative sectors. This includes fostering the development across the EU of micro-studios specialised in AI-enhanced virtual production, in addition to launching a targeted study to explore the legal challenges related to AI-generated outputs. A more specific AI strategy for the cultural and creative sectors is expected to follow in Q1 2027; the [Directive](#) on copyright and related rights in the Digital Single Market will undergo a review no sooner than June 2026. An underlying [study](#) started in November 2025. These activities may provide further opportunities to examine the copyrightability of works produced with the help of AI and they will be followed by relevant players across the world.

In the future, it will be increasingly important for authorities in different jurisdictions, both within the EU and globally, to examine the interaction between humans and AI tools more closely. Courts, regulators and decision-makers will need to determine what kind and level of human involvement will be needed for copyright protection and how it can be demonstrated. Striking the right balance across the world will be a shared challenge, which may determine the future of creative professionals.

Main references

Generative AI and Copyright: Training, Creation, Regulation, Policy Department for Justice, Civil Liberties and Institutional Affairs, Directorate-General for Citizens' Rights, Justice and Institutional Affairs, European Parliament.

Resolution of 20 October 2020 on intellectual property rights for the development of artificial intelligence technologies, European Parliament.

[Trends and developments in artificial intelligence – Challenges to the intellectual property rights framework: Final report](#), Publications Office of the European Union, 2020.

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